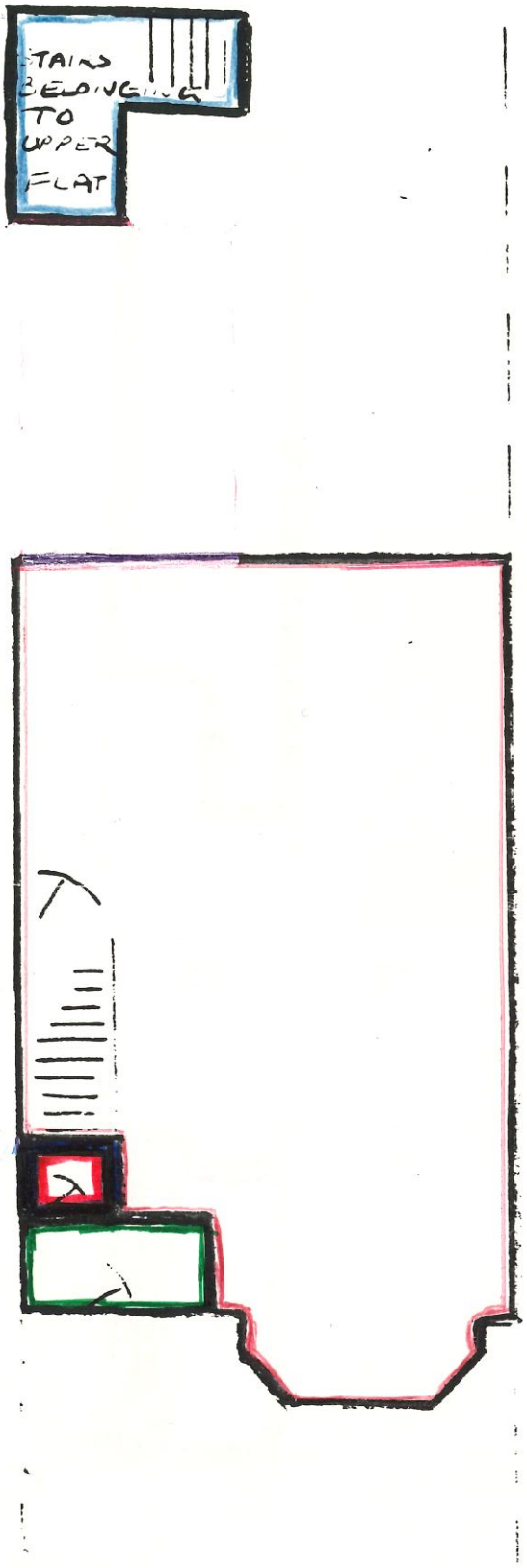
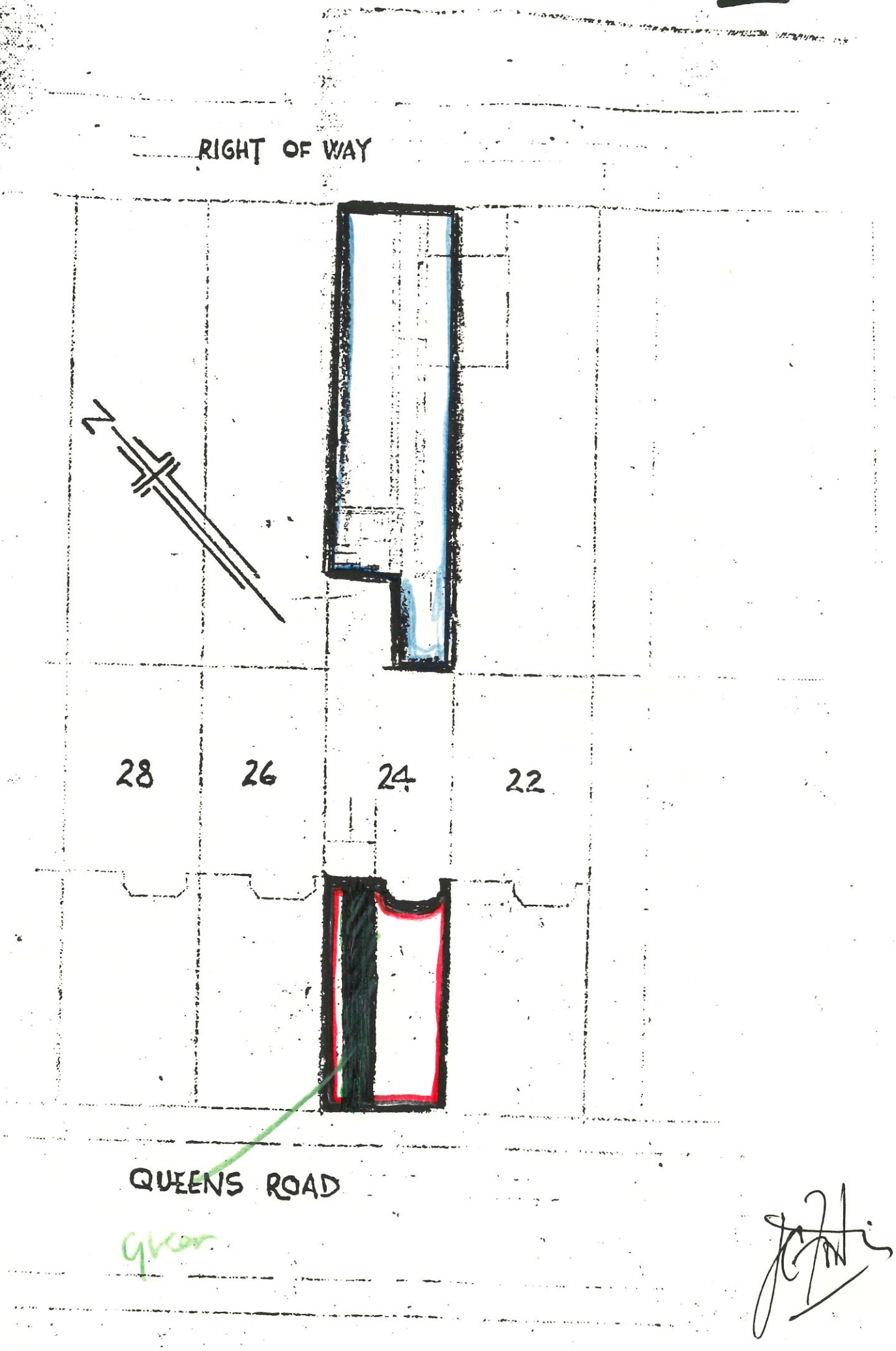
PLAN NO. I



UPPER FLOOR FLAT

PLAN NO 2



INLAND REVENUE
04 APR 1985
PRODUCED
FINANCE ACT 1931

THIS LEASE is made the 29th day of March 1985

BETWEEN DOROTHY BUTTERWORTH of 24a Queens Road Hoylake Wirral Merseyside (hereinafter caled "the Lessor") of the one part and BRIAN REAY and AUDREY REAY of 22 Mostyn Avenue West Kirby Wirral Merseyside (hereinafter called "the Lessee") of the other part

WHEREAS the Lessor has agreed with the Lessee in consideration of the rent hereinafter reserved and the covenants on the part of the Lessor and Lessee hereinafter contained to grant this Lease

NOW THIS DEED WITNESSETH as follows:-

1. IN CONSIDERATION of the rent and the Lessee's covenants hereinafter contained and reserved the Lessor HEREBY DEMISES unto the Lessee ALL THAT the property described in the First Schedule hereto (hereinafter called "the Upper Flat") subject to the rights contained in the Third Schedule hereto EXCEPT AND RESERVING out of this Lease for the benefit of the property described in the Second Schedule hereto (hereinafter called "the Lower Flat") the rights set forth in the Fourth Schedule hereto TO HOLD the Upper Flat except and reserved as aforesaid unto the Lessee for a term of 999 years from the date hereof at the rent of one peppercorn subject to the covenants conditions and stipulations hereinafter contained

2. THE Lessee to the intent and so as to bind the Upper Flat and so as to benefit and protect the Lower Flat and each and every part thereof HEREBY COVENANTS with the Lessor and her successors in title that the Lessee and the persons deriving title under him will at all times hereafter observe and perform the stipulations and obligations set out in the Fifth Schedule hereto

3. THE Lessor to the intent and so as to bind the Lower Flat and to benefit and protect the Upper Flat and each and every part thereof HEREBY COVENANTS with the Lessee that the Lessor and the persons

deriving title under her will at all times hereafter observe and perform the stipulations and obligations set out in the Sixth Schedule hereto

4. IT IS HEREBY CERTIFIED that the transaction hereby effected does not form part of a larger transaction or of a series of transactions in respect of which the amount or value or the aggregate amount or value of the consideration exceeds £30,000.00

IN WITNESS whereof the parties hereto have hereunto set their hands and seals the day and year first before written

THE FIRST SCHEDULE

ALL THAT flat intended to be known as 24a Queens Road Hoylake aforesaid being more particularly the upper of the two self contained flats situate within the dwellinghouse and comprising the ground floor entrance and staircase leading thereto edged blue on plan number 1 and remaining accommodation in the dwellinghouse situate on the first and second floors thereof and including the roof space thereof TOGETHER WITH the rear garden of the dwellinghouse edged blue on plan number 2 annexed hereto (hereinafter called "the rear garden")

THE SECOND SCHEDULE

ALL THAT flat known as 24 Queens Road Hoylake aforesaid being more particularly the lower of two self contained flats situate within the dwellinghouse and comprising the ground floor of the said dwellinghouse (including one half part of the depth of the joists between the ceiling of the lower flat and the floors of the upper flat and the internal and external walls of the lower flat up to the same level as the same is more particularly delineated on plan number 1 annexed hereto TOGETHER WITH the vestibule edged green on plan number 1 AND TOGETHER WITH the land comprising the front garden to the dwellinghouse and edged red on plan number 2 annexed hereto (hereinafter called "the front garden")

THE THIRD SCHEDULE

Rights Easements and Appurtenances Granted for the Benefit of the Upper Flat

1. A right of way in common with the Lessor and her successors in title at all times and for all purposes connected with the reasonable use and enjoyment of the upper flat as a flat on foot only over that portion of the front garden coloured green on plan number 2 for the purpose of ingress to and egress from the vestibule edged green on plan number 1 TOGETHER WITH a right of way on foot only over the roof of the bathroom extension belonging to the ground floor flat the roof area at all times to be kept clear of articles of furniture garden pots and ornaments the owners and occupiers for the time being of the lower flat or any part thereof and their respective servants licensees at all times for the purposes connected with the reasonable use and enjoyment of the upper flat as a flat on foot only over the front garden for the purpose of ingress to and egress from the vestibule edged green on plan number 1

2. A right of support and protection for the upper flat by all parts of the lower flat so far as they now support and protect the same

3. A right of passage in common with the Lessor and others as aforesaid of gas electricity water and soil telephone radio and television service from and to any part of the Upper Flat through pipes wires and conduits lying or being under through or over the lower flat so far as may be reaonably necessary for the beneficial occupation of the Upper Flat for all purposes

4. The right with or without workmen and necessary materials to enter from time to time into or upon the Lower Flat for the purpose of repairing so far as may be necessary such pipes drains meters wires and conduits as aforesaid and for the purpose of repairing or repainting

any parts of the upper flat or for the purpose of cleaning the windows thereof in so far as such repairs repaining or cleaning cannot reasonably be carried out without such entry as is required by this paragraph referred to in all cases upon giving reasonable previous notice of her intentions so to enter except in case of emergency and making good to the reasonable satisfaction of the Lessor any damage caused to any part of the Lower Flat or arising out of the exercise of the reight reserved by this paragraph and the right to enter and examine the condition of the Lower Flat so as to ensure that the rights of support and protection referred to in paragraph 1 of this Schedule are at all times maintained

THE FOURTH SCHEDULE

Rights Easements and Appurtenances Execpted and Reserved to the Lessor for the Benefit of the Lower Flat

1. A right of support and protection for the Lower Flat by all parts of the Upper Flat so far as they now support and protect the same

2. A right (in common as aforesaid) to the passage of gas electricity water and soil radio and television service from and to any part of the Lower Flat through the pipes drains wires and conduits laying or being under through or voer the Upper Flat so far as may be reasonably necessary for the beneficial occupation of the Lower Flat for all purposes

3. A right with or without workmen and necessary materials to enter from time to time upon the Upper Flat for the purpose of repairing so far as may be necessary such pipes drains wires meters and conduits aforesaid and for the purpose of rebuilding repairing or repainting any parts of the Lower Flat or for the purpose of cleaning the windows thereof (in so far as such repairs repainting or cleansing cannot reasonably be carried out without such entry as is by this

clause referred to and in all cases upon giving reasonable previous notice of the intention so to enter to the Lessee except in cases of emergency and making good to the reasonable satisfaction of the Lessee any damage caused to any part of the Upper Flat arising directly or indirectly out of the exercise of the rights granted by this paragraph) and the right to enter and examine the condition of the Upper Flat so as to ensure that the rights of support and protection referred to in paragraph 1 of this Schedule are at all times maintained

4. A right of way in common with the owners or occupiers of the Lower Flat on foot only over the rear garden for the purpose of placing and using a dustbin at all reasonable times

THE FIFTH SCHEDULE

Stipulations and Obligations to be Observed and Performed by the Lessee

1. Not to lessen or diminish the support or protection now given or afforded to all parts of the Lower Flat by the Upper Flat

2. Not at any time to make any structural alterations modifications or additions to the Upper Flat without first obtaining the consent of the owner or the Lessor such consent not to be unreasonably withheld

3. Not to obstruct by behicles deposited materials or otherwise the free passage of the Lessor and other persons entitled to rights of way over the vestibule edged green on plan number 1 and the driveway cloloured green on plan number 2 and not to park any vehicle caravan thereon

4. Not to cause or permit any obstruction of any drain or pipe used in common with the Lessor for the purpose of water or soil

5. Not to use the flat or allow or permit the same to be sued for any purpose other than as a aingle private dwellinghouse otherwise than

as the residence of a practitioner of medicine or surgery or registered dental practitioner only and for no other purpose but so that such practitioners shall not receive lunatics or other patients to reside in the premises nor have any shop or dispensary for dispensing or selling drugs thereof nor for any purpose which may be or become a nuisance or annoyance to the owner of the Lower Flat or any neighbouring owners or occupiers nor for any immoral or illegal purpose or whereby any insurance for the time being effected by the Lessor on the Lower Flat may be rendered void or voidable or whereby the rate of premium may be increased

6. At all times hereafter to contribute and pay three-fifths of all costs expenses and outgoings relating to the maintenance and repair of:-

(i) the main structure including the main walls and timbers the roof chimney stacks and boundary walls of the dwellinghouse (but excluding the front boundary walls)

(ii) the rainwater drainage system serving the dwellinghouse including all gutters pipes and drains

(iii) the vestibule edged green on plan number 2 and the driveway coloured green on plan number 2

(iv) the gas and water pipes drains conduits and electrical wires and other gas water and electrical installations and the soil pipes serving the dwellinghouse and used or enjoyed by the Lessee and the Lessor in common

(v) the cost of decorating at least once in every five years the exterior of the building in a colour to be mutually agreed between the owners for the time being of the Upper Flat and Lower Flat and in default of agreement in the same colour as hall then be existing

7. At all times to insure and keep insured the Upper Flat and all outbuildings against loss or damage by fire and the usual comprehensive risks in the joint names of the Lessor and the Lessee with a responsible insurance office of repute which shall be approved by the Lessor to the full replacement value thereof (the amount of the replacement value to be agreed between the Lessee and the Lessor) and to make all payments necessary for the above mentioned purposes within fourteen days after the same shall respectively become payable and to produce to the Lessor not often than once in every year on demand the policy or policies of such insurance and the latest receipt for such payment

8. To maintain the structure of the Upper Flat in such a state of repair and condition as to ensure the maintenance of support and protection to the Lower Flat so far as appropriate

9. Not to repair any joists or beams supporting the floors of the Upper Flat without giving notice to the Lessor of the intention so to do and giving full details of the work to be carried out and to be responsible for and to pay all costs in connection with repairing any damage caused to the ceiling of the Lower Flat arising out of the repairs to the joists and floor of the Upper Flat

10. To permit the Lessor and her agents with or without workmen and others once a year at reasonable times and upon giving reasonable notice of an intention to do so to enter and examine the condition of the Upper Flat in order to ensure the due observance of the Lessee notice in writing specifying any repairs required calling upon the Lessee forthwith to execute the same and if the Lessee shall not within one month after service of such notice proceed diligently with the execution of such repairs then to permit the Lessor to enter upon the Upper Floor and execute such repairs the cost thereof to be a debt due

to the Lessor from the Lessee recoverable by action

11. As often as the whole or any part of the Upper Flat shall be destroyed or damaged by fire explosion or aircraft escape of water or otherwise cause to rebuild or reinstate the Upper Flat in all material respects to its present condition and it is hereby agreed that any monies received in respect of the insurance of the Upper Flat herein covenanted to be paid by the Lessee shall be applied so far as the same shall extend in so rebuilding or reinstating the Upper Flat

12. To keep the rear garden in good order and condition

13. Not to use any sound producing instruments or equipment in the Upper Flat between the hours of 11 p.m. and 9 a.m. so as to be audible outside the flat and at all other times no such instrument or equipment shall be used so as to be a nuisance or annoyance to the occupier of the Lower Flat

14. Not to exhibit any sign plate or placard in or upon the Upper Flat (except the name of the house or a plate of the size and description commonly used by a medical man or a registered dentist)

15. To keep in repair the pipes wires and mains exclusively serving the Upper Flat and not to permit the escape of gas from any such pipes

16. To pay all assessments outgoings and all other charges so far as they are assessed separately on the Upper Flat

THE SIXTH SCHEDULE

Stipulations and Obligations to be Observed and Performed by the Lessor

1. The covenants stipulations and obligations contained in clauses 1 2 4 5 7 8 10 11 12 13 14 15 and 16 of the Fifth Schedule substituting the words Lessor and Lower Flat for the words Lessee and Upper Flat and vice versa

2. Not to obstruct by vehicles deposit of materials or otherwise

the free passage of the Lessee to the vestibule edged green on plan numer 2

3. To pay two fifths of the costs in respect of which the Lessee by virtue of clause 6 of the Fifth Schdule covenants to pay the remaining three fifths

4. Not to repair any joists or beams supporting the ceiling of the Lower Flat without giving notice to the Lessee of the intention so to do and giving full details of the work to be carried out and to be responsible for and to pay all costs in connection with repairing any damage caused to the ceiling of the Lower Flat

5. In any Lease of the Lwer Flat to include covenants by the Lessee in the same form (as near as circumstances permit) to those contained herein

JOSEPH CHARLES FOSTER AS ATTORNEY FOR

SIGNED SEALED AND DELIVERED by the said DOROTHY BUTTERWORTH in the presence of:-

Mr Macartney
Clerk with J P Almond & Co
Solicitors
Hoylake.

DATED: 29th March 1985

DOROTHY BUTTERWORTH

to

BRIAN REAY

and

AUDREY REAY

LEASE

Relating to 24a Queens Road,
Hoylake, Wirral, Merseyside

H.M. LAND REGISTRY

LEASEHOLD TITLE REGISTERED

TITLE NUMBER MS223833

H.M. LAND REGISTRY BH 34

Lees Moore & Price
44/45 Hamilton Square
BIRKENHEAD
Merseyside L41 5AR